

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF OBJECTION AND CONSTITUTIONAL CHALLENGE TO
SUMMARY DENIAL OF DEFENDANT'S EMERGENCY MOTION TO
STAY PROCEEDINGS**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully places on the record his formal objection to the Order titled “**Order Denying Defendant’s Emergency Motion to Stay Proceedings Pending Resolution of Constitutional and Threshold Issues and for Indigency Determination,**” entered nunc pro tunc to June 13, 2025 and filed June 26, 2025. As grounds therefor, Defendant states:

I. SUMMARY DENIAL WITHOUT FINDINGS ON CONSTITUTIONAL AND THRESHOLD GROUNDS

1. Defendant's Emergency Motion presented urgent and substantial constitutional questions, including:

- Statute of limitations bar (Fla. Stat. § 95.11);
- Lack of board authorization by both co-Plaintiff Toke Oil & Gas S.A. and Plaintiff DeepGulf, Inc. to initiate or maintain this litigation;
- Inability to travel due to verified physical and financial incapacity;
- Repeated refusal by the Court to adjudicate indigency or provide procedural access, including persistent failure to rule meaningfully on motions for remote appearance or other alternatives.

2. The Court's denial of this Emergency Motion was entered without any factual findings, legal reasoning, or acknowledgment of the substantial constitutional and threshold issues raised—despite its direct implications for the legitimacy of the trial and default judgment.

3. This denial violates both state and federal due process guarantees, including:

- The Fourteenth Amendment to the United States Constitution, which prohibits deprivation of property without meaningful opportunity to be heard;
- Article I, Section 9 of the Florida Constitution, which guarantees that “[n]o person shall be deprived of life, liberty or property without due process of law”;
- Florida Rule of Judicial Administration 2.515, requiring that all orders be reasoned and sufficiently detailed for review;
- And Canon 3(B)(8) of the Florida Code of Judicial Conduct, which mandates that judges dispose of all judicial matters promptly, efficiently, and fairly.

4. As recognized in *Boddie v. Connecticut*, 401 U.S. 371 (1971), due process prohibits courts from denying access to indigent litigants where court adjudication is the only forum available for defending property or liberty.

5. The retroactive entry of the Order (*nunc pro tunc* to June 13, 2025), but not filed until June 26, only exacerbates these concerns, creating

ambiguity in the record as to whether Defendant had any fair opportunity to seek reconsideration or appellate relief before the June 17 trial was forced to proceed under default.

II. OBJECTION TO COURT’S REFUSAL TO CONSIDER IRREFUTABLE INDIGENCY AND SEIZURE OF PROPERTY BY PLAINTIFF’S CONFEDERATE

6. Defendant has submitted repeated and un rebutted evidence that:

- His bank account in France is under a judicial lien obtained by David Rumsey—a known confederate and litigation ally of Plaintiff Howard and the fourth-largest shareholder in DeepGulf, Inc.—such that any balance exceeding €646 is automatically seized;
- The same individual has obtained a judicial lien on Defendant’s only residence and is currently pursuing its forced liquidation;
- Defendant has no access to credit, no legal source of income other than his meagre pension of under \$900 per month, and no means to travel to the United States or retain legal counsel.

7. These facts, independently and collectively, establish Defendant’s status as indigent under both Florida law and constitutional precedent.

In fact, Defendant was recently recognized as indigent by a court located less than 10 miles from his residence, which appointed him a legal aid attorney (*avocat commis d'office au titre de l'aide juridictionnelle*) under France's equivalent of public defense. It is inconceivable that such a designation would be made lightly by a tribunal sitting within full geographical and legal proximity to Defendant's actual circumstances.

8. Despite formal filings requesting a determination of indigency, the Court has:

- Never held a hearing;
- Never issued findings;
- And has proceeded with trial in absentia, under default, with full knowledge of Defendant's incapacity to appear.

9. Under *Boddie v. Connecticut*, it is a violation of the Due Process Clause to deny a party access to court based solely on inability to pay when court access is the exclusive mechanism for defending property or liberty.

10. Here, Defendant's exclusion from trial and the resulting adverse judgment were the direct result of conditions entirely beyond his

control—conditions materially caused by Plaintiffs and their associates.

11. Any ruling, injunction, or Final Judgment entered under these circumstances is constitutionally defective, and this objection is expressly preserved for appellate and federal review.

III. IMPROPER STRIKING OF DEFENDANT'S COUNTERCLAIM WITHOUT ANALYSIS

12. The Court's Final Judgment states that "The Counterclaim filed by Defendant was previously stricken," but offers no reasoning or reference to legal authority.

13. Defendant's **Amended Counterclaim** was grounded in factual allegations already supported elsewhere in the record by financial records, internal corporate correspondence, and sworn declarations, which collectively documented:

- \$888,000 in unpaid contractual salary obligations by the Plaintiffs (3 years at \$120,000 and 4 years at \$132,000);
- \$150,000 in unreimbursed business expenses advanced personally;
- \$90,000 in legal expenses owed under DeepGulf's own bylaws;

- Ownership and misappropriation of intellectual property;
- And acts of fraud, breach of fiduciary duty, and abuse of process.

14. The Court never held a hearing on these claims and summarily brushed them aside due solely to Defendant's inability to travel—a deprivation not only caused by Plaintiff's own confederates, but one which, even if not pre-existing, was made real and absolute by their actions. Striking the counterclaim without analysis, particularly where its subject matter exceeds the dollar value of the Complaint, constitutes a further denial of due process and judicial impartiality.

IV. EXCLUSION FROM TRIAL DESPITE VIABLE REMOTE OPTIONS

15. Defendant had repeatedly requested alternative means of participation, including remote appearance via Zoom or similar platforms. Plaintiffs' insistence on in-person trial—despite full knowledge of Defendant's medical and financial incapacity—effectively eliminated all meaningful opportunity for Defendant to defend himself. The Court's acquiescence to this exclusion, without

ruling on Defendant's medical documentation or financial hardship, denied him the most basic procedural safeguards.

WHEREFORE, Defendant respectfully requests that the Court take judicial notice of this objection, acknowledge the procedural and constitutional defects embedded in the summary denial of the Emergency Motion, and recognize that any Final Judgment based upon such denial is constitutionally infirm and subject to appellate and, if necessary, federal review.

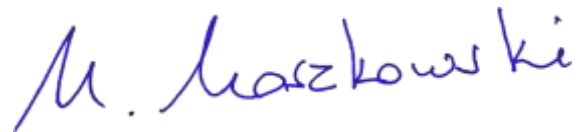
Respectfully submitted this 27th day of June, 2025.

Marc Moszkowski, Pro Se

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 27th day of June, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski